

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

DANIEL NEAL,

Plaintiffs,

- against -

THE CITY OF NEW YORK, SEAGATE COURT
HOMEOWNERS ASSOCIATION, INC., SEAGATE
HOMEOWNERS ASSOCIATION, THE SEAGATE
ASSOCIATION, and DARRIEN PHILLIPS,

Defendants.

-----X

Index No.

Plaintiff designates
Kings County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at
2750 West 33rd Street, #1548
Brooklyn, NY 11224
County of Kings

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 20, 2018

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
DANIEL NEAL
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, NY 10007
Seagate Court Homeowners Association, Inc., 1258 49th Street,
Brooklyn, NY 11219
Seagate Homeowners Association, 3700 Surf Avenue, Brooklyn, NY 11223
The Seagate Association, 3700 Surf Avenue, Brooklyn, New York 11223
Darrien Phillips, c/o 60th Pct, 2951 West 8th Street, Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
DANIEL NEAL,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, SEAGATE COURT
HOMEOWNERS ASSOCIATION, INC., SEAGATE
HOMEOWNERS ASSOCIATION, THE SEAGATE
ASSOCIATION, and DARRIEN PHILLIPS,

Defendants.

-----X

Plaintiff, complaining of the defendants, by his
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
November 30, 2017, the plaintiff, **DANIEL NEAL**, was and still is a
resident of the County of Kings, City and State of New York.

2. That, at all times hereinafter mentioned, and on
November 30, 2017, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
November 30, 2017, defendant, **DARRIEN PHILLIPS**, (hereinafter
referred to as "**PHILLIPS**"), was and still is a resident of the

City and State of New York.

4. That, the plaintiff, **DANIEL NEAL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on February 13, 2018 within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DANIEL NEAL**, testified at an oral examination pursuant to the General Municipal Law on April 24, 2018; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

5. That, at all times hereinafter mentioned, and on November 30, 2017, the defendant, **SEAGATE COURT HOMEOWNERS ASSOCIATION, INC.**, (hereinafter referred to as "**SEAGATE**"), was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. That, at all times hereinafter mentioned, and on November 30, 2017, the defendant **SEAGATE**, was and still is a foreign corporation transacting business within the State of New York.

7. That, at all times hereinafter mentioned, and on November 30, 2017, the defendant, **THE SEAGATE HOMEOWNERS ASSOCIATION** (hereinafter referred to as "**HOMEOWNERS**"), was and still is a domestic corporation duly organized and existing under

and by virtue of the laws of the State of New York.

8. That, at all times hereinafter mentioned, and on November 30, 2017, the defendant **HOMEOWNERS** was and still is a domestic business entity, transacting business within the State of New York.

9. That, at all times hereinafter mentioned, and on November 30, 2017, the defendant, **THE SEAGATE ASSOCIATION** (hereinafter referred to as "**ASSOCIATION**"), was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. That, at all times hereinafter mentioned, and on November 30, 2017, the defendant **ASSOCIATION** was and still is a domestic business entity, transacting business within the State of New York.

11. That at all times hereinafter mentioned and on November 30, 2017, the plaintiff, **DANIEL NEAL** was, in the vicinity of 5017 Surf Avenue, in the County of Kings, City and State of New York.

12. That, he was given permission remove his possessions from the aforementioned premises.

13. That he obtained a dolly and utilized same to remove his possessions.

14. That police officers, and/or other agents, servants, and/or employees of the defendant and/or defendants had approached the plaintiff, **DANIEL NEAL**, and began to interrogate

him without probable cause.

15. That, the plaintiff, **DANIEL NEAL**, was thereafter arrested by the defendant and/or defendants, their agents, servants, and/or employees and a police officer, and his personal items were confiscated.

16. That, the plaintiff, **DANIEL NEAL**, was taken by the defendant, and/or defendants, and their agents servants, and/or employees, to the Seagate Precinct, whereby he was held against his will and arrested.

17. That, he remained in handcuffs and cuffed to the wall by the defendant, and/or defendants, their agents, servants, and employees.

18. That he was thereafter taken to the 60th Precinct whereby he remained under the custody and against his will by the defendant and/or defendants, their agents, servants, and employees.

19. That he was thereafter removed to Central Booking by the defendant and/or defendants, their agents, servants, and employees, and remained there for a long period of time.

20. That the plaintiff. **DANIEL NEAL**, was seen by a judge, and thereafter released.

21. That the plaintiff, **DANIEL NEAL**, was forced to appear in Court, whereby the charges were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION

22. That, the plaintiff, **DANIEL NEAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 21 with the same force and effect as if hereinafter more fully set forth at length herein.

23. That, on November 30, 2017, the plaintiff, **DANIEL NEAL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

24. That, the plaintiff, **DANIEL NEAL**, was assaulted/battered without justification and without cause and without excuse.

25. That, the assault/battery took place on premises known as 5017 Surf Avenue, Brooklyn, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **DANIEL NEAL**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

26. That, at all times hereinafter mentioned and on November 30, 2017, and for sometime prior thereto, defendant, **PHILLIPS**, was a New York City police officer, and/or agent servant and/or employee of the defendant, **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

27. That, at all times hereinafter mentioned and on November 30, 2017, and for sometime prior thereto, defendant, **PHILLIPS**, was a police officer, and/or agent servant and/or employee

of the defendant, and/or defendants working in the scope and course of his employment as a police officer.

28. That, the aforementioned assault and battery of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, **THE CITY**.

29. That, the aforementioned assault and battery of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **SEAGATE**, and/or the defendant, and/or defendants, while working within the scope and course of their employment.

30. That, the aforementioned assault and battery of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **HOMEOWNERS**, and/or the defendant, and/or defendants, while working within the scope and course of their employment.

31. That, the aforementioned assault and battery of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **ASSOCIATION**, and/or the defendant, and/or defendants, while working within the scope and course of their employment.

32. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and

advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

33. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

34. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

35. That, the plaintiff, **DANIEL NEAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 34 with the same force and effect as if hereinafter more fully set forth at length herein.

36. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

37. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police

officers, agents, servants and/or other employees of the defendant, **SEAGATE**, and/or defendant, and/or defendants.

38. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **HOMEOWNERS**, and/or defendant, and/or defendants.

39. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **ASSOCIATION**, and/or defendant, and/or defendants.

40. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, and/or defendants.

41. That the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **SEAGATE**, and/or the defendant and/or defendants.

42. That the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **HOMEOWNERS**, and/or the defendant and/or defendants.

43. That the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **ASSOCIATION**, and/or the defendant and/or defendants.

44. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **PHILLIPS**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

45. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **SEAGATE**, and/or the defendant, and/or defendants.

46. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of

the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **HOMEOWNERS**, and/or the defendant, and/or defendants.

47. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, and/or defendants, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **ASSOCIATION**, and/or the defendant, and/or defendants.

48. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PHILLIPS**, who was employed by the defendant, **THE CITY**.

49. That, the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PHILLIPS**, who was employed by the defendant, **SEAGATE**, and/or the defendant, and/or defendants.

50. That, the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent

hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PHILLIPS**, who was employed by the defendant, **HOMEOWNERS**, and/or the defendant, and/or defendants.

51. That, the defendant, and/or defendants, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **PHILLIPS**, who was employed by the defendant, **ASSOCIATION**, and/or the defendant, and/or defendants.

52. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

53. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

54. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, has sustained damages in an amount in excess of the

jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

55. That the plaintiff, **DANIEL NEAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 54 with the same force and effect as if hereinafter more fully set forth at length herein.

56. That, on November 30, 2017, the plaintiff, **DANIEL NEAL**, was caused to be falsely arrested and falsely imprisoned without probable cause.

57. That, the plaintiff, **DANIEL NEAL**, was arrested without an arrest warrant.

58. That, the false arrest/false imprisonment took place on premises known as 5017 Surf Avenue, Brooklyn, in the County of Kings, City and State of New York, and other locations and wherein the plaintiff, **DANIEL NEAL** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

59. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

60. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by

police officers and/or other servants, agents and/or employees of the defendant, **SEAGATE**, and/or the defendant, and/or defendants.

61. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **HOMEOWNERS**, and/or the defendant, and/or defendants.

62. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **ASSOCIATION**, and/or the defendant, and/or defendants.

63. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by defendant, **PHILLIPS**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

64. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by defendant, **PHILLIPS**, and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, **SEAGATE**, and/or the defendant, and/or defendants.

65. That, the aforementioned false arrest and false

imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by defendant, **PHILLIPS**, and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, **HOMEOWNERS**, and/or the defendant, and/or defendants.

66. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DANIEL NEAL**, was carried out by defendant, **PHILLIPS**, and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant, **ASSOCIATION**, and/or the defendant, and/or defendants.

67. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

68. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

69. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

70. The plaintiff, **DANIEL NEAL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 69, with the same force and effect as if hereinafter more fully set forth at length herein.

71. That the plaintiff, **DANIEL NEAL**, did not commit any illegal act, nor did the individually named defendant have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; and deprived his of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

72. That at all times hereinafter mentioned, the defendant, **PHILLIPS**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

73. That at all times hereinafter mentioned, the defendant, **PHILLIPS**, was employed in his respective capacity by the defendant, and/or defendants and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, and/or defendants.

74. Defendant, **PHILLIPS**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **DANIEL NEAL**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

75. Defendant, **PHILLIPS**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant and/or defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, and/or defendants has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff, **DANIEL NEAL**, or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

76. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DANIEL NEAL**, of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **DANIEL NEAL**, to be secure in his person and effects against unreasonable

search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DANIEL NEAL**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DANIEL NEAL**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

77. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant, **PHILLIPS**, while acting under color of state law and within the scope of his employ.

78. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

79. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, and/or defendants' custom and/or policy of arresting individuals without probable cause.

80. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

81. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, and/or defendants' custom and/or policy of arresting minorities without probable cause.

82. That the deprivation of plaintiff, **DANIEL NEAL** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

83. That the deprivation of plaintiff, **DANIEL NEAL** Constitutional Rights was the result of the defendant, and/or defendants' custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

84. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

85. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, and/or defendants

86. That the detaining of plaintiff, **DANIEL NEAL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

87. That the detaining of plaintiff, **DANIEL NEAL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, and/or defendants.

88. That the deprivation of plaintiff, **DANIEL NEAL's** Constitutional Rights was the result of the defendant, **PHILLIPS's** arrest of the plaintiff **DANIEL NEAL** without probable cause.

89. That the deprivation of plaintiff, **DANIEL NEAL's** Constitutional Rights was a result of the defendant, **THE**

CITY's custom and policy in failing to discipline officers for the use of excessive force.

90. That the deprivation of plaintiff, **DANIEL NEAL's** Constitutional Rights was a result of the defendant, and/or defendants' custom and policy in failing to discipline officers for the use of excessive force.

91. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DANIEL NEAL**.

92. That the customs and/or policies adopted by the defendant, and/or defendants exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DANIEL NEAL**.

93. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **DANIEL NEAL** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

94. That, by reason of the foregoing, the plaintiff **DANIEL NEAL** was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

95. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

96. That, by reason of the foregoing, the plaintiff, **DANIEL NEAL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DANIEL NEAL** demand judgment against the defendants, on the First, Second, Third, and Fourth causes of action in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
November 20, 2018

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
DANIEL NEAL
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

ATTORNEY'S VERIFICATION

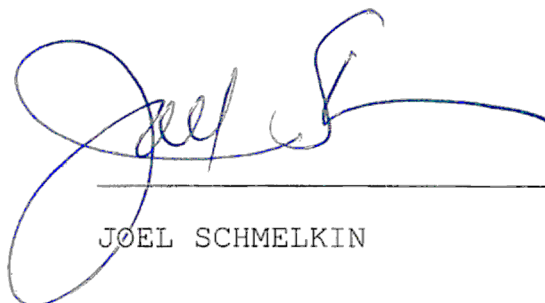
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, states, the following:

I am associated with the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiffs in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiffs because the plaintiffs do not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiffs and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
November 20, 2018



JOEL SCHMELKIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DANIEL NEAL,

Plaintiff,

-against-

THE CITY OF NEW YORK, SEAGATE COURT HOMEOWNERS ASSOCIATION, INC.,
SEAGATE HOMEOWNERS ASSOCIATION, THE SEAGATE ASSOCIATION,
and DARRIEN PHILLIPS,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Daniel Neal

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: November 20, 2018

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007